

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

PURSUANT TO FAR 6.303

CONTROL NUMBER: JA-FY25-005

1. IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY.

National Geospatial-Intelligence Agency / Office of Contract Services

2. NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED.

The nature and description of this action (justification) is to execute a contract award for the Protected Internet eXchange (PiX) Operations and Sustainment (O&S) requirement as follow-on to the existing contract, HM0476-19-C-0089, which expires on February 28, 2025.

3. ESTIMATED VALUE AND PERIOD OF PERFORMANCE OR PROJECTED DELIVERY SCHEDULE.**a. ESTIMATED VALUE (\$M):** [REDACTED]**b. PERIOD OF PERFORMANCE, INCLUDING ALL OPTION PERIODS, OR PROJECTED DELIVERY SCHEDULE:**

Current contract ends on 28 February 2025. The period of performance is as follows:

- Base Year: 12 Months (1 March 2025 to 28 February 2026)
- Option Year 1: 12 Months (1 March 2026 to 28 February 2027)
- Option Year 2: 12 Months (1 March 2027 to 28 February 2028)
- Option Year 3: 12 Months (1 March 2028 to 28 February 2029)
- Option Year 4: 12 Months (1 March 2029 to 28 February 2030)

4. IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION.

The statutory authority permitting other than full an open competition is 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1, "Only one responsible source and no other supplies or services will satisfy agency requirements."

5. DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS.

NGA has a mission-critical need for the O&S of PiX, a password-protected system that allows approved users to securely collaborate and access unclassified data and imagery for a wide variety of USG mission needs including knowledge management, safety of navigation, partner nation co-production, deconfliction, and situational awareness. The ability to share information securely is critical for maintaining the USG's situational understanding, improving partner capacity to address Strategic Competition influence efforts, and expediting the response to emerging crises around the world. PiX allows users to access and share unique, non-traditional data outside of normal Department of Defense

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(DoD) or intelligence community (IC) channels and provides the capability to securely coordinate and share data across the interagency on the open Internet.

The PiX contract will continue to utilize a mixed contract, as on previous awards, with different contract types for each contract line item number (CLIN) in order to provide a tailored solution to meet evolving program requirements. The PiX O&S contract CLINs and contract types are:

- System Sustainment (FFP) for technical support for system security, data integrations and routine software maintenance and development including server administration and patching, basic system updates, security scans and updates, data integrations, maintenance of the PiX application and integrated third party software, and help desk support;
- Operational Support (T&M) including data curation and integration, content research, geospatial information system (GIS), and request for information support;
- Materials (ODC) costs incurred by the PiX program including server infrastructure, security services software, identity and access management servers, network traffic, data transfer, data storage, third party software expenses, and Help Desk software; and
- Travel (ODC) for all travel expenses related to support to the PiX program.

Based on mission requirements, PiX addresses several key functional and integrated areas:

- **Security:** PiX provides an environment to allow users to securely report, collaborate, and find information outside of the normal DoD networks, accessible from any network capable device and available in austere, low-bandwidth environments. The PiX operating system resides in the Amazon Web Services (AWS) GovCloud and provides the appropriate level of services to address security and system availability to retain an NGA Authorization to Operate (ATO). The PiX ATO places it in a state of continuous monitoring to effectively administer and monitor security controls employed within or inherited by the system. Under the ATO, PiX must respond to approximately 1,300 separate security controls, and accredits PiX to hold controlled unclassified information (CUI), including SBU, FOUO, LES, and LIMDIS. The PiX security accreditation carries over to the partner applications and other services deployed in the PiX environment.

Access Control: PiX has firewalls and layered security features to fortify the servers storing data and the information sharing tools and features. PiX access control enables system administrators to actively manage approved users' accounts and permissions, ensuring that they only have access to the specific data they need for their mission. There are only a small number of privileged system administrators have access to servers, which is more heavily monitored, controlled, and limited. Controls are in place for all levels of access, and each user is permissioned to see and manage only the information they need or allowed to access. Within the firewalls, PiX partitions services into separate VPCs to further protect data and capabilities. This unique PiX-developed layered security extends into the sharing system itself, which gives individualized access to users based on permissions established by the USG. PiX has six separate types of user roles and permissions: Privileged, Staff and Administrative, USG, FVEY, NATO, and Everyone.

- **Software, System Maintenance, and Partner Applications:** PiX is deployed in Production and Factory (includes Staging, Integration, and Quality Assurance environments) in the AWS GovCloud, which includes all components of the PiX application, partner application integration with the PiX Security Service, and integration between the PiX application and external data sources. PiX is comprised of federated security services that allow decoupled partner

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applications to benefit from shared security features, which enables the USG and partners to securely access applications such as Mobile Awareness GEOINT Environment (MAGE), GXP Xplorer, ArcGIS enterprise, Tableau, PiX DataManager, and more. PiX Developers and DevOps support a two-week sprint cycle, ensuring the system is up-to-date, secure, and responsive to users' and NGA needs.

PiX provides access to streaming unclassified commercial satellite imagery for the USG. Imagery filmstrips are available for easy viewing particular imagery locations to track changes over time. USG partners can also view unclassified imagery for specific missions with approval from NGA International Affairs. PiX provides GIS tools and staff support for interactive and static mapping products, such as the MAPiX (the PiX ArcGIS enterprise) and flexible GIS data entry through several mechanisms such as forms, upload, and API access. PiX connects systems such as MAPiX with other online geospatial platforms to share data where it is most needed, sets up portal-to-portal connections, and pushes data cross-domain to other networks for further analysis and collaboration.

- **Content Curation and Management:** PiX provides a professionally managed, unclassified, open-source, collaborative environment maintained and curated by skilled professionals. PiX ingests data from curated sources and builds visualizations and interactive dashboards that support PiX user missions. PiX staff maintains, adds, and organizes PiX content based on user demand to ensure that content is easily discoverable. As of August 2024, PiX users have contributed over 1.5 million files which are continually being curated on PiX to allow them to be shared with the USG and partners. PiX users operate more than 2,600 active data sharing portals, and PiX staff help support data flows for more than 100 data initiatives that automatically update PiX content to meet users' needs. The PiX GIS team products feed 1,250 pages in PiX, and the team manages more than 1,500 layers and GIS products to support various users.
- **Mission Support:** PiX provides support to a variety of missions to enable sharing and analytical capability tools between the USG and coalition partners. There are currently over 750 US and Partner Offices and over 122 Countries using PiX for collaboration and data sharing with the USG. Some of the PiX mission support examples include:
 - Aeronautical Data Collaboration and Dissemination support for NGA. Safety of Aviation Partnership collaboration and exchanges with over 50 aviation organization to meet the mandated 28-day production cycle, e.g. transfer raw data for international co-production of VO and AFD (other than FIVE-EYE); replace the broken SCIP and AMRDEC methods of transferring aeronautical safety of navigation information; transfer data between SFAAS, SFAGD and contractors in place of FTP; transfer FLIP, AFIF, DAFIF and VO data to foreign partners in fulfillment of aero data exchange agreements; and receipt of aeronautical source from foreign partners, per NGA Memorandum of Understandings (MOUs) with partner nations.
 - Geospatial Information Exchange. Through the PiX deployment of ArcGIS Enterprise (MAPiX), the USG securely collaborates on and publishes geospatial projects with partners. This collaborative environment with over 14 agencies across the USG, includes: AFRICOM, CENTCOM, DOE, EUCOM, INDOPACOM, NGA, INSCOM, NORTHCOM, TRADOC G2, US Army Civil Affairs, USCG, USMC, SOCOM, USAID; over 50 NGA users across 21 offices; and 18 nations with 87 foreign users.

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- Ukraine / Europe Critical support for multinational partner collaboration, including sharing and analytical capability tools between the USG and coalition partners to support European OSINT collaboration and the automated transfer of unclassified data and reporting to a partner collaboration site in BICES and DOD/ABIS.
- AFRICOM support for multinational partner collaboration, e.g., USAFRICOM Zebra Strike support; AFRICOM J2 Maritime domain awareness and vessel detection to enable Partner nation capacity building and research support; and AFRICOM NST, AFRICOM J221 and SOCCENT dataset of Strategic Minerals in Africa.
- Critical support for the production capability and data collaboration of the Canadian Forces Intelligence Command (CFINTCOM).
- Collaborative mapping for the partners of the Allied System of Geospatial Intelligence (ASG).
- Great Powers: Global Chinese, Russian, and Iranian Points of Influence dataset (in coordination with ODNI, AFRICOM J2, and NGA).
- Request for information and geospatial mapping mission support for thousands of deployed users to focus on specific user interest.

In addition to the focused mission support to NGA and CCMDs discussed above, since the last contract award the PiX system has continued to increase in complexity in order to meet emerging mission and user requirements and to support the 300% growth in the number of daily active users, 150% increase in foreign partner nations, 85% increase in the amount and variety of data that is shared for collaboration. Previously, the primary PiX user was deployed and required individual attention for their unique needs as a result of a lack of resources and support. The current PiX community and users require more system level support and unique structured sharing capabilities and permissions, e.g. restricted sharing for only USG and Lithuania. In addition, to meet mission requirements, changes to the system have been incorporated to include the integration of additional partner applications (e.g. MAGE, Piper, Tableau, ArcGIS Knowledge, SMART) to provide additional requested mission support capabilities, in some cases directly funded by CCMDs or other government agencies.

6. DEMONSTRATION OF THE PROPOSED CONTRACTOR’S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION THAT REQUIRES USE OF THE AUTHORITY CITED.

The success of PiX is fully dependent on the ability to securely manage and share the data provided by USG and partners for collaboration. Tesla Government is uniquely qualified to provide the services described above for the PiX O&S because the PiX system was developed largely by Tesla and is heavily modified commercial code. The backbone of the PiX system relies on the ability to successfully employ and manage the PiX Discretionary Access Controls (DAC) to ensure only approved users have access to data on the site and to ensure the NGA ATO approval to hold CUI. Partner applications hosted within PiX have also required heavily modified commercial code be developed and integrated to leverage the DAC to implement user restrictions. During the current contract, Tesla Government has increased the complexity of the PiX DAC due to a significant growth in the number of users, increased foreign partners, and the variety of data types and sharing requirements (e.g., FVEY, NATO, USG + Lithuania, etc.). Due to the unique requirements for each dataset and from each user and organization, the process to ensure users, portals and data sharing must rely on the PiX staff and extensive experience with the PiX system. Tesla Government is the only company that can perform the required DAC implementation without

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significant risk and delays to mission support, or potential compromise to the data resulting in loss of PiX ATO.

Tesla Government is the only contractor that has demonstrated capabilities to perform all aspects of the PiX O&S contract, as demonstrated by previous competitively-awarded PiX contracts awarded to Tesla Government. Tesla Government has continuously supported PiX since its inception in 2009 and has been the prime contractor since 2014 and is able to meet all the PiX requirements for data curation and content management, community engagement, geographic information system (GIS) management and production, satellite imagery management, coordination and integration of partner applications, operations and sustainment of information technology systems (including the technology behind PiX), information system security, and program management of an operations IT system in NGA.

A new acquisition to secure these services would result in substantial duplication of cost to the government that is not expected to be recovered through competition and could lead to significant cost growth, performance schedule delays, and significant mission impacts. Due to the highly specialized services and software developed by Tesla Government, award of the contract to a new vendor would require significant re-development or adaptation costs. The government believes that any other vendor would need to substantially replicate the existing systems' unique features at a high cost, resulting in substantial duplication of cost. In addition, transition would result in unacceptable delays in fulfilling the agency's requirements and lapses of mission support and capabilities and the interruption or breakdown of collaboration between the Government and partners.

Substantial duplication of cost to the government would be incurred during a transition period to a new contractor:

- Vendor transition period which would require the new vendor and current incumbent to both be under contract;
- Re-engineering of the underlying software microservices and architecture of the PiX O&S system that were developed, implemented, and updated by Tesla Government;
- Adaptive maintenance as a result of delays until the current two (2) week sprint cycle can be met which will impact the ability to reduce and/or eliminate technical debt, modifications to improve performance and/or maintainability, and UI/UX improvements;
- Re-starting, patching, and updates to applications and services.
- Re-engineering of the geospatial visualizations built using open-source and commercial GIS software;
- Re-engineering of the PiX federated security services that allow decoupled partner applications to benefit from shared security features, which enables the USG and partners to securely access applications;
- Re-engineering of the integrated code necessary to leverage the PiX Security Service and implement user restrictions, specific integration requirements, and integration of the application with Rampart, the Tesla developed software for user authentication; and

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Re-engineering of the PiX unclassified satellite imagery from commercial and other sources available to securely to various user groups using the PiX-developed access control software.

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A duplication of cost to the government, of [REDACTED] would be incurred as a result of a transition to a new contractor. The basis of this estimate is the minimum estimated 6-8 months lapse of O&S and mission support that will be incurred while the new vendor completes the transition and is able to perform at the current pace of operations for security updates, new integrations and UI/UX improvements for the continued secure operation of the PiX O&S. The cost basis was developed based on the following:

- Vendor transition period which would require the new vendor and current incumbent to both be under contract;
- Re-engineering of the underlying software microservices and architecture of the PiX O&S system that were developed, implemented, and updated by Tesla Government;
- Adaptive maintenance as a result of delays until the current two (2) week sprint cycle can be met which will impact the ability to reduce and/or eliminate technical debt, modifications to improve performance and/or maintainability, and UI/UX improvements;
- Re-starting, patching, and updates to applications and services.
- Re-engineering of the geospatial visualizations built using open-source and commercial GIS software;
- Re-engineering of the PiX federated security services that allow decoupled partner applications to benefit from shared security features, which enables the USG and partners to securely access applications;

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- Re-engineering of the integrated code necessary to leverage the PiX Security Service and implement user restrictions, specific integration requirements, and integration of the application with Rampart, the Tesla developed software for user authentication; and
- Re-engineering of the PiX unclassified satellite imagery from commercial and other sources available to securely to various user groups using the PiX-developed access control software.

This action is justified pursuant to FAR 6.302-1(b)(1)(ii), there is a reasonable basis to conclude that the agency's minimum needs can only be satisfied by unique supplies or services available from only one or a limited number of sources or suppliers with unique capabilities.

7. DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE.

NGA benefits from having experience with prior contracts for these services and from performing market research to determine the current interest and capabilities of industry. In collecting market research for the PiX O&S follow-on contract, NGA posted a request for information (RFI) on 11 September 2023 on Sam.gov. Five (5) vendors responded to the RFI. The PiX market research evaluated the responses to the posted RFI and obtained information useful in structuring the acquisition strategy, reviewed Industry recommendations for developing an effective and efficient PWS, and assessed Industry's capability and capacity to provide requisite services meeting program objectives and requirements.

NGA posted a notice of intent to sole source this proposed procurement as required by FAR 5.2 on 6 January 2025. The notice closed on 21 January 2025. NGA received no responses.

8. CONTRACTING OFFICER DETERMINATION THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE.

Before award of the contract extension, all required technical and cost/price analysis, consistent with the FAR/DFARS requirements and other best practices, will be used to determine fair and reasonable price for the resulting contract action. The contractor will provide a cost/price proposal that will undergo the appropriate analysis to ensure the negotiation of a fair and reasonable price, to include review of the labor categories and direct labor rates, as well as indirect rates, pursuant to FAR 15.404-1(b)(1).

9. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED.

Market Research was conducted to collect data from industry partners for the benefit of ensuring the source selection process delivers quality and timely products and services to the Warfighter and the Nation at the best value to the taxpayer. The acquisition team employed the following market research techniques to assemble and analyze the information necessary for the planning of this acquisition:

- Identify and assess other agency solutions
- Identify and assess available contract vehicles
- Review potential supplier information, e.g. Industry RFI responses

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A detailed assessment of the Industry RFI responses is provided in the PiX Market Research Report and identified several issues:

- All respondents (except for the incumbent) emphasized relevant experience at the TS/SCI level, rather than the required experience at the unclassified open source with limited to no details on capabilities for performing the unclassified aspects of the program, such as open source/publicly available information research, data curation, GIS support, and partner collaboration efforts
- Only one (1) respondent, other than the incumbent, met all the experience elements identified in the Government questions. However, that respondent's experience was with a DoD program that per a DoD Office of the Inspector General (OIG) Report was in non-compliance with cybersecurity requirements.

The Market Research results determined that:

- Although there are other platforms that are focused on collaboration, PiX is the only one able to meet the requirements delineated in the PiX PWS.
- No available contract vehicles were identified that are able meet NGA's service needs.
- Evaluation of the RFI responses concluded that any vendor other than the incumbent would result in unacceptable delays in fulfilling the agency's requirement and result in significant risk to ongoing mission operations for data sharing and analytical capability tools between the USG and coalition partners.

10. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION.

The requirement for PiX dates back to 2009, initially put on contract HM1572-10-D-0002 as part of a Task Order under the TASER contract, awarded to BAE with Tesla Government as the subcontractor, with a PoP of 3 November 2010 to 30 September 2014. During this period, Tesla Government performed over 85% of the work so the contract was transitioned to a set-aside small business and competitively awarded. The PiX re-compete contract HM1572-14-C-0005 was awarded to Tesla Government in 2014 and the current contract HM0476-19-C-0089 awarded in 2019 with a POP of 1 September 2019 to 31 August 2024. A 6-month extension extended the current contract to 28 February 2025.

The current PiX contract was competed as a small-business set-aside. No previous problems were encountered during past contract performance. Performance Assessment Reports (PARs) from each year of the current contract indicate performance have been Exceptional in each area for the past five (5) years.

As a result of the increased system complexity that has been implemented and the significant increase of users during the current contract, the market research determined that the ability for a new vendor to perform the PiX O&S would result in duplication of costs, delays in mission support and significant risks to PiX data security. Although automation is leveraged for data sharing and emerging conflicts support, the data curation and user management aspects of PiX still require hands-on effort and extensive knowledge of the system. Currently, new PiX curators typically take six (6) months to acquire sufficient knowledge and rely on other PiX system experts' oversight.

11. LISTING OF SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION.

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A total of five (5) companies responded to the Government's RFI: [REDACTED]

[REDACTED] Three (3) of the prospective bidders are small business vendors.

The Government determined the capability statements received would result in unacceptable delays in fulfilling the agency's requirements. The other vendors would have difficulty to immediately fulfill the requirements due to the complex existing and required development platform, tooling, security, deployment, support and capabilities. Transition to a new vendor would result in lapses of support and capabilities that could result in serious failures to meet PiX mission support for sharing and analytical capability tools between NGA and coalition partner and result in interruption or breakdown of collaboration and data sharing between NGA and partners.

12. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED.

The steps that can be taken to foster competition for future acquisitions includes:

- Increased advertising and notices on federal contracting sites (e.g., Sam.gov)
- Conduct periodic outreach to industry and sponsor industry days
- Clearly define the system requirements in the PWS to document current processes and architecture to facilitate successful transition.
- Actively seek diverse bidders to avoid reliance on a limited pool of vendors (e.g. perform ongoing market research to identify emerging federated environments with similar complexity that support missions requiring austere, low-bandwidth environments).

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CERTIFICATIONS AND APPROVAL

AWARD WITH AN ESTIMATED VALUE EXCEEDING \$15 MILLION BUT NOT EXCEEDING \$100 MILLION

PM/COR CERTIFICATION:

I certify that any supporting facts and data under my responsibility which form a basis for this Justification are accurate and complete to the best of my knowledge and belief.

SIGNATURE: _____

DATE: _____

PM/COR'S FIRST LINE SUPERVISOR CERTIFICATION:

I certify that the facts and data which are included in this Justification are accurate and complete to the best of my knowledge and belief.

SIGNATURE: _____

DATE: _____

CONTRACTING OFFICER'S CERTIFICATION:

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

SIGNATURE: _____

DATE: _____

LEGAL REVIEW:

I have reviewed this Justification for Other than Full and Open competition.

SIGNATURE: _____

DATE: _____

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COGNIZANT OCS DIVISION CHIEF:

I have reviewed this Justification and find it accurate and complete to the best of my knowledge and belief.

SIGNATURE:

[Redacted Signature]

DATE:

AGENCY COMPETITION ADVOCATE APPROVAL:

I have reviewed this Justification and find it accurate and complete to the best of my knowledge and belief.

SIGNATURE:

[Redacted Signature]

DATE:
